

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, AUGUST 14, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**GEORGE LACSON v. RAY BEYOND CORP; ET AL.
Case No. CU24-04909**

Trial Management Conference

TENTATIVE RULING:

Trial counsel to appear in person.

Jury trial is scheduled to commence August 27, 2026 with a 7 day time estimate. Based upon the TMC packets, the court believes this estimate to be unrealistic and that the trial will be at least 14 days in length.

Trial commences at 9 am on August 27 and thereafter at 10 am Tuesday through Friday unless otherwise ordered. Typically, trial recesses between 4 and 415 pm.

Trial Management Conference – Tentative Rulings

The following are the tentative rulings in anticipation of the continued Trial Management Conference scheduled for August 14, 2026 at 9:00 a.m.

A. Statement of the Case:

The court intends to provide the following statement to jurors based on the parties' joint statement of the case:

This lawsuit was filed by George Lacson after a rear end vehicle accident occurred on June 8, 2023, on Leisure Town Road in Vacaville California. The defendants are

Spectrum Center, Inc. and Tajuana Neshay Hill At the time of the accident, Ms. Hill was an employee of Spectrum Center, Inc.

Liability is not in dispute. The parties agree that during the course of her employment Ms. Hill was driving the vehicle which rear-ended Mr. Lacson's vehicle. Mr. Lacson's truck was pushed forward into another vehicle as a result of the collision. The parties agree that the negligence of Ms. Hill was the sole cause of the rear end accident.

Damages to George Lacson are in dispute. George Lacson alleges that he has suffered personal injuries as a result of the motor vehicle accident. Spectrum Center, Inc. and Ms. Hill dispute the extent and nature of Mr. Lacson's alleged injuries and also whether the alleged injuries were caused by the accident.

B. Plaintiff's Trial Management Statement and Motions in Limine

The court reviewed Plaintiff's 427 page Trial Management Statement filed July 23, 2026. The court additionally reviewed Defendant's oppositions filed August 4, 2026. The court has also reviewed the additional submissions by both parties on August 4 and 11, 2026.

1. **Witnesses:** Plaintiff requested that a treating physician be permitted to appear remotely by filing a request for remote appearance. This is not an appropriate vehicle to request remote appearances by witnesses for a jury trial. Parties to meet and confer to determine if there is an objection to a remotely testifying witness. If there is no objection, a party who calls a witness remotely does so at their own peril. If there is an objection, the court does not permit remote testimony by witnesses during a jury trial. Parties to work on daily calendars identifying witnesses and schedules for each day. Plaintiff has identified an excessive number of expert and treating witnesses with overlapping topics. For example, why is it necessary to have testimony from two treating chiropractors? Counsel is advised the court may exercise its discretion under Evidence Code section 352.

2. Stipulations

Please meet and confer with defense counsel to confirm stipulations and reduce these stipulations to writing. There should never be a need for a custodian of records to testify. Conversely, it is a rare x-ray that a juror can examine on his or her own. But if an x ray is foundational to another expert's opinion, the parties should stipulate to admissibility.

3. **Plaintiff's Exhibit List:** Please review your exhibit list and identify only exhibits you intend to move into evidence versus exhibits that are simply foundational for experts. 154 exhibits is excessive and will cause this trial to triple in length. (Evid. Code, § 352.) Due to the volume of proposed exhibits, upon submission to the jury for deliberations, you will be required to provide 12 copies of the admitted exhibits, so each juror has a copy for deliberations.

4. **Plaintiff's Motions In Limine**

The court is not required to rule on any motion in limine prior to voir dire as demanded by Plaintiff. Motions in limine may be reserved.

1. **MIL 1:** Preclude term "independent medical exam." **Not opposed. GRANTED.**

2. **MIL 2:** Preclude opinions by Kara Flavin, M.D. not expressed in deposition and providing opinions not supported by scientific support. MIL 2 alleges that Dr. Flavin did not review diagnostic radiological files, an EEG test or oculometrics examination and she objected generally to the EEG test. Defendants agree they will not request opinions about previous cervical epidural steroid injections, accident reconstruction or biomechanical engineering. The balance of MIL2 is **DENIED**.

3. **MIL 3:** Exclude supplemental expert witness Erik Volk as untimely as the economist is not in rebuttal to any witnesses disclosed. **DENIED, PROVIDED DEFENSE MAKES VOLK AVAILABLE FOR DEPOSITION.**

4. **MIL4:** Exclude reference to accident being minor and accident reconstruction or biomechanical engineering opinions. **With clarification, not opposed. GRANTED IN PART. Liability is not in dispute but generally the nature of the impact is relevant to damages and expert opinions related to treatment. How do the parties intend to present this foundational evidence?**

5. **MIL5:** Preclude various opinions by Dr. Serdahl. Defendant does not oppose precluding Dr. Serdahl from opinion regarding forces of the collision or sub rosa. Dr. Serdahl is not precluded from testifying about employing an optometrist in his practice. Dr. Serdahls is not precluded from testifying about the referral pattern for Dr. Stephenson and Dr. Fong. Attorney referral evidence is relevant. (See *Qaadir v. Figueroa* (2021) 67 Cal.App.5th 790, 808.) The balance of MIL5 is **GRANTED** as lacking foundation.

6. **MIL6:** Preclude reference to how judgment proceeds will be used. **Not opposed. GRANTED.**

7. **MIL7:** Preclude Defendants from apologizing. **DENIED.** The jury will be well instructed not to make decisions based upon bias or emotion and questions eliciting these types of answers should not be made by counsel. But a defendant should not be prevented from suitably acknowledging wrongdoing nor be penalized for appearing to avoid responsibility. Evaluating witness credibility and demeanor is also part of the jury's role.

C. Defendant's Trial Management Statement and Motions in Limine

The court reviewed Defendant's 1820 page Trial Management filed on July 23, 2026. The court considered Plaintiff's oppositions filed August 4 and 11, 2026.

1. **Witnesses:** As with discussion of Plaintiff's witnesses, please review to ensure that there is no duplication. The number of witnesses is inconsistent with the trial estimate of 5-7 days. The court reserves the right to exclude witnesses per Evidence Code section 352.
2. **Defendant's Exhibit List:**
Please identify the exhibits you intend to move into evidence versus exhibits you are marking for foundation purposes. Given the volume of proposed exhibits, Defendant should be prepared at the close of trial to provide 12 binders with sets of admitted exhibits for each juror's use during jury deliberations.
3. **Defendant's Motions in Limine:**

Defendant's MIL 1: Defendant challenges the use of DTI for assessment of traumatic brain injury ("TBI") as not being generally accepted in the scientific community. No California published court decision appears to address scientific acceptability of DTI to assess TBI nor the purported underlying analysis by Cortechs Labs, NeuroQuant and the QMETA. Other jurisdictions are inconsistent in finding DTI to assess TBI as scientifically reliable and contradictory decisions exist within those jurisdictions. The court notes the recent non-binding superior court decision in *Chapman v. Matulich* from Riverside County Superior Court 2022 Cal.Super LEXIS 98922 analyzing proposed testimony by expert Dr. Solomon and concluding the opinions were inadmissible.

A 402 hearing will be heard **August 19, 2026 at 10:00 a.m.** to determine the admissibility of Dr. Solomon's opinion under *Kelly* and extrapolation/analysis performed by Cortechs Labs, NeuroQuant and QMETA. Parties to meet and confer to determine whether Defendant's other objections, i.e. opinions regarding hemorrhaging shearing injury or non-hemorrhagic shearing injury, microbleeds, superficial siderosis or herniation at C3-4, annual tear, will be sought by Plaintiff. Additionally, confirm whether Plaintiff intends to use the demonstrative exhibits and be prepared to present the demonstrative exhibit at the 402 hearing.

Defendant's MIL2: Exclude evidence not produced in discovery. **RESERVED AS TRIAL OBJECTION.** Evidence not produced in discovery is generally excluded; however, without knowing the specific item to be excluded the court cannot rule.

Defendant's MIL3: Exclude expert opinions not expressed at deposition.
RESERVED AS TRIAL OBJECTION Defendants do not identify explicit issues upon which the court may rule.

Defendant's MIL 4: As liability is stipulated, exclude irrelevant evidence regarding the circumstances of the accident. **Not opposed, provided evidence of dog in Plaintiff's car also excluded. GRANTED BUT SEE PLAINTIFF'S MIL4.**

Defendant's MIL 5: Exclude cumulative and duplicative testimony. **PARTIES TO ADDRESS.** Above, the court expressed concern about the list of witnesses and repetitive nature of the proposed information provided by different experts and/or treating doctors. The estimated time for this trial was 7 days. This trial as currently planned by the parties will well exceed 14 days. Each party shall be prepared to address how testimony is not cumulative and is forewarned that the court will exercise its powers per Evidence Code 352.

Defendant's MIL 6: GRANTED IN PART. The parties appear to agree no accident reconstruction or biomechanical engineer evidence will be presented. The court expects that experts will discuss the basic aspects of the accident to explain their opinion regarding how certain forces from an accident can result in certain injuries.

Defendant's MIL 7: Exclude expert opinions regarding sub rosa. **DENIED.**

Defendant's MIL 8: GRANTED IN PART. The court presumes that this MIL relates to all medical treatment that was not provided on lien.

Defendant's MIL 9: Exclude evidence of life care plan due to the failure to discount the life care plan to present value. **DENIED.**

D. Proposed Jury Instructions and Verdict Form:

The court reserves over proposed jury instructions and verdict forms. Please meet and confer regarding retention of a single court reporter between the parties for each day of trial. The court reporter must be physically present in the courtroom and cannot appear via Zoom. The court reporter must be available during jury deliberations for read-back or have prepared a final transcript. An order appointing the reporter pro tem shall be submitted in advance to ensure the reporter is available and qualified. The reporter shall set up after conclusion of morning calendar and prior to commencement of trial. The court will not continue the case due to the absence of a reporter.

Parties shall make arrangements with the courtroom clerk to pre-mark exhibits and to lodge all originals of transcripts prior to trial. Please bring original deposition transcripts to the first day of trial.

Please reduce all stipulations to writing. The stipulations will be marked as a court exhibit and deemed admitted. Parties to notify the court when you wish the court to read the stipulation to the jury.

Jury fees shall be paid daily. Failure to pay jury fees will result in waiver of jury.

TARA N. CRUZ vs. CARVANA, LLC, ET AL.
Case No. CU25-05498

Demurrer to Second Amended Complaint

TENTATIVE RULING

Parties to appear.

Defendant GENERAL MOTORS COMPANY (“GM”) demurs to Plaintiff TARA CRUZ’s second amended complaint (“2AC”) alleging causes of action for (1) violation of the Song-Beverly Consumer Warranty Act, (2) strict product liability, (3) unfair competition, (4) Consumer Legal Remedies Act (“CLRA”) violations, and (5) fraud.

Summarized, Plaintiff alleges that on June 14, 2021 she bought a used 2014 Buick Encore (the “Vehicle”) from Defendant CARVANA, LLC. The Vehicle has needed repair several times since purchase. The Vehicle has a defective PCV pressure regulator diaphragm integrated into the camshaft cover. The Vehicle came with a buyer’s guide that represented it remained covered by the manufacturer’s warranty.

Notice of Tentative Ruling. GM’s notice of demurrer does not advise the recipient that the Solano County Superior Court uses a tentative ruling system, as is required under Local Rule 3.9, subdivision (d). GM is cautioned to observe local rules going forward. Hence, the court has notified the parties to appear.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Statute of Repose – Song Beverly. Code of Civil Procedure section 871.21, subdivision (b) provides a six-year statute of repose for an action covered by section 871.20 (here, effectively, an action for breach of implied warranty under Song-Beverly),

stating that no such action exists later than six years after the date of original delivery of the motor vehicle.

CRUZ bought a used 2014 Buick Encore from CARVANA, a retailer who is not associated to GM. The 2AC admits that the vehicle was pre-owned and in the hands of previous consumers no later than 2018. (2AC at ¶ 22.) In other words, the vehicle was delivered to someone at least by 2018 (and likely much earlier). Six years later would be sometime in 2024, well prior to the filing of this suit on June 13, 2025.

Code of Civil Procedure section 871.21 was adopted September 29, 2024 and became effective January 1, 2025. (See 2024 AB 1755). It created a statute of repose, exterminating the right to bring a cause of action under Song-Beverly if brought more than 6 years after delivery of a vehicle. Unlike a statute of limitations, a statute of repose means that after this deadline by operation of law no cause of action can exist. (See *PGA West Residential Assn. v. Hulven Internat. Inc.* (2017) 14 Cal.App.5th 156, 177.) AB 1755 reflected legislative compromises related to the Song-Beverly statutory scheme and mirrors statutory deadlines expressed in the Uniform Commercial Code. (See e.g. Cal. U.Com. Code, § 2607(3)(A).)

The Legislative intent is to make the statute of repose retroactive. To that end, the legislative scheme encompasses “all of...motor vehicles sold in the year 2025 and in all prior years.” (CCP § 871.29(a)(1).)

A statute of repose is different than a statute of limitations. With respect to a statute of limitations, the Legislature may shorten or extend periods of statutes of limitation retrospectively, but when a change is made retroactive there must be a reasonable time permitted for the party affected to avail himself of a remedy before the statute takes effect. (*Rosefield Packing Co. v. Superior Court* (1935) 4 Cal.2d 120, 122.) In contrast, where a cause of action is abated by legislative action, there is no vested right that is impacted if the legislative action takes effect prior to entry of judgment. (See *Zipperer v. County of Santa Clara* (2005) 133 Cal.App.4th 1013, 1024 [statutory remedies may be abated by legislative action; no vested right to statutory penalty or forfeiture].) No vested right can exist to a statutory cause of action that the Legislature has eliminated. (*Zipperer* at p. 1024; *Willcox v. Edwards* (1912) 162 Cal.455, 466 [statute which repeals earlier one expressly or by implication without savings clause cannot support proceeds not already prosecuted to final judgment].)

Even applying a traditional due process analysis associated with changes in statutes of limitation, it does not violate due process to apply 871.21 to this action. Here, Plaintiff alleges she had problems with the Encore the day after she bought it on June 14, 2021. Well before the 2025 effective date of the amendment, Plaintiff had the opportunity to bring her claims. Additionally, Plaintiff could have filed suit during the several intervening months between adoption of AB1755 and its effective date on January 1, 2025. Given there was previously a 4 year statute of limitations for her Song Beverly cause of action which arguably accrued as late/early as 2021, it is not unfair to apply a 6 year statute of repose.

Based upon applicability of 871.21 to Plaintiff's first cause of action, Defendant's demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Strict Liability: Failure to Warn/Design Defect. Strict liability for a design defect in a product applies to personal injuries arising from the defect, not to economic damages. No physical injury or damage to personal property is alleged in the 2AC. A plaintiff may recover in tort for physical injury or property damage, but not for purely economic losses that may be recovered in a contract, warranty or statutorily authorized cause of action. (See *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 18; see also *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 (citations omitted) [no recovery in tort for negligently inflicted purely economic losses]; *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

The demurrer to the second cause of action for strict liability is SUSTAINED WITHOUT LEAVE TO AMEND.

Fraudulent Concealment. Plaintiff alleges that she took the Vehicle in for repairs many times between June and December 2021. (2AC at ¶ 34.) December 2021 appears to be the latest point in time that Plaintiff realized or should have realized the Vehicle had a defect. That date is more than three years before the June 13, 2025 date of filing for the original complaint in this action. The fraud cause of action as stated is barred by the three-year statute of limitations.

The elements of fraudulent concealment are also not sufficiently alleged here. There is no showing of a transactional relationship between the parties where Plaintiff does not allege obtaining the Vehicle from GM or its authorized dealer. (*Dhital v. Nissan North America Inc.* (2022) 84 Cal.App.5th 828, 844 [pleading standards for fraudulent concealment in lemon law action including transactional relationship via purchase from dealer].)

The demurrer to the fourth cause of action for concealment is SUSTAINED WITHOUT LEAVE TO AMEND.

Consumer Legal Remedies Act. GM's argument that Plaintiff fails to allege that she gave it thirty days' notice of its supposed CLRA violation and thus a chance to cure is not applicable to this situation. Civil Code section 1782 only compels a consumer to provide pre-suit notice before filing an action "for damages" and Plaintiff specifically states that she seeks injunctive relief only for her CLRA claim. (2AC at ¶ 62.)

However, the alleged CLRA violation is the familiar alleged failure to disclose known information about the Vehicle's defect. (*Id.* at ¶ 59.) The same failure to allege a transaction between the parties defeats the CLRA cause of action as pled. Plaintiff alleges that she would not have purchased the Vehicle had she known about the defect, but she never alleges how GM was involved in the transaction whereby she purchased

the Vehicle. (CACI 4700 [CLRA applies to transactions resulting or intending to result in sale or lease of goods to consumer].)

The demurrer to the fourth cause of action for Consumer Legal Remedies Act-Concealment is SUSTAINED WITHOUT LEAVE TO AMEND.

Unfair Competition Law. Business and Professions Code section 17200, the “unfair competition law,” prohibits any activity that can be properly called a business practice and at the same time is forbidden by law. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 321.) The unfair competition law essentially borrows violations of other laws and makes them independently actionable when done pursuant to business activity; virtually any law can serve as the predicate for an unfair competition cause of action. (*Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335.)

As the court has sustained GM’s demurrer to each alleged cause of action, the UCL which was derivative of the other causes of action, also fails.

The demurrer to the third cause of action for Unfair Competition is SUSTAINED WITHOUT LEAVE TO AMEND.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party’s burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiff offers no directed argument as to how she could correct any identified deficiencies, only generally stating she can add facts if given leave to amend.

Conclusion. GM’s demurrer is sustained without leave to amend as to each cause of action plead in the 2AC.

GM shall prepare the order after hearing and submit it directly to the court and is excused with compliance with CRC 3.112. GM is the prevailing party.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002